

1st Cause of Action - Determination of Interests Incidental to Restitution (CCP § 760.020)

Plaintiff purports to bring her First Cause of Action under CCP § 760.020, which she characterizes as "Determination of Interests Incidental to Restitution." However, section 760.020 is part of the quiet title statute and provides:

"In an action brought under this chapter, the court may ... determine any question arising in the action and necessary to a determination of the rights of the parties 19 or to a complete settlement of all questions of title."

CCP § 760.020 is a procedural provision that allows courts to resolve ancillary issues in quiet title actions. It does not create an independent cause of action for restitution or equitable lien. Defendant is right that Plaintiff cannot invoke section 760.020 to bootstrap a restitution claim into a quiet title framework, particularly after this Court sustained a demurrer to her original quiet title complaint. SUSTAINED

2ND and 3rd Causes of Action - Equitable Lien/Unjust Enrichment and Equitable Lien

Defendant claims that despite Plaintiffs protestations that she "does not seek adjudication of title for purposes of ownership," her allegations make clear that she is challenging Defendant's ownership interest and asserting her own competing interest. Defendant contends that Plaintiff alleges an "equitable interest," "equitable lien," and "restitutionary interest" in the property based on her unauthorized expenditures. According to Defendant, these allegations are functionally identical to a quiet title claim. Plaintiff seeks a judicial determination that she has a legally enforceable interest in Defendant's property that is superior to Defendant's ownership interest to the extent of \$28,340.00. This is a challenge to title, according to Defendant, regardless of the label Plaintiff applies.

Plaintiff, on the other hand, contends that claims for quiet title and adverse possession have been removed from the pleading since the Court ruled on the prior demurrer. The FAC does not ask the Court to award Plaintiff possession or title for purposes of ownership. Instead, it seeks restitution, equitable lien/unjust enrichment, and constructive trust/equitable lien as remedies to prevent unjust enrichment and secure limited monetary relief. Based on what has been presented, the Court must overrule the demurrer to the second and third causes of action for pleading purposes.

Matters outside scope of demurrer

Defendant once again tries to take this matter outside the scope of demurrer by bringing in extrinsic matter in a seeming attempt to litigate this action at the pleading stage. The court will not address these numerous allegations.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2600896	ROSE VS SPENCER FOOD SERVICES, INC.	DEMURRER ON CROSS- COMPLAINT OF SPENCER FOOD SERVICES, INC. BY DENISE BARRIER

Tentative Ruling: Sustained.

Cross Complainant Spencer granted leave, one additional time, to file an Amended Cross Complaint within 10 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

This is a personal injury action initiated on January 21, 2026 by Plaintiff Jillian M. Rose against Defendant Spencer Food Services, Inc. (or “Spencer”). On February 10, 2024, Plaintiff was struck by a dangerous condition while she was on Defendants’ premises sustaining injuries. Plaintiff alleges Defendants negligently owned, maintained, managed, and operated the premises. Defendants’ negligence caused Plaintiff’s injuries. The Complaint asserts causes of action for: (1) General Negligence and (2) Premises Liability.

Cross Complaint. Spencer filed a Cross Complaint against Cross-Defendant Denis Barrier (or “Barrier”) on April 27, 2026 for (1) Indemnification; (2) Declaratory Relief; and (3) Apportionment of Fault.

Motion. Barrier now demurs to the Cross Complaint for failure to state facts sufficient and is uncertain. Barrier points out the entire Cross Complaint fails to allege any ultimate facts regarding any wrongful act, omission, or breach of duty, relying on bare legal conclusions and speculation.

In opposition, Spencer argues the demurrer must be denied for failure to provide the required notice under Code of Civil Procedure section 1005. Otherwise, Spencer maintains the Cross Complaint contains sufficient facts to support the causes of action asserted.

Demurrer

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Kattelman* (1994) 8 Cal. 4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A special demurrer lies where a pleading is uncertain, ambiguous and unintelligible. (CCP § 430.10(f).) Demurrers for uncertainty, however, are typically sustained where the defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him. (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Timeliness of Demurrer

Code of Civil Procedure section 1005, subdivision (b), requires all moving and supporting papers to be served and filed at least 16 court days before hearing. If the notice was served via email, as it was here, the required 16-day period of notice before hearing shall be increased by two calendar days. (Code Civ. Proc., §§ 1005, subd. (b), 1013.) Thus, Barrier was required to file the demurrer on July 2, 2026. However, Spencer timely filed an opposition on the merits and therefore waived any defect in the notice. (*Carlton v. Quint* (2000) 77 Cal.App.4th 690, 696-697.)

1st Cause of Action - Indemnification

Indemnity means “the obligation resting on one party to make good a loss or damage another party has incurred.” (*Rossmore Sanitation, Inc. v. Pylon, Inc.* 91975) 13 Cal.3d 622, 628.) “An indemnitor is the party who is obligated to pay another.” (*Maryland Casualty Co. v. Bailey & Sons, Inc.* (1995) 35 Cal.App.4th 856, 864.) “An indemnitee is the party who is entitled to receive the payment from the indemnitor.” (*Id.*) “An indemnity obligation arises from two general sources.” (*Id.*) First, it may arise from “express contractual language establishing a duty in one party to save another harmless upon the occurrence of specified circumstances.” (*E.L. White, Inc. v. City of Huntington Beach* (1978) 21 Cal.3d 497, 506 (“*E.L. White*”).) Here, there is no allegation of a contract in the Cross Complaint.

Second, indemnity may also arise based on equitable considerations. (*E.L. White, supra*, 21 Cal.3d at 507.) “Unlike contractual indemnity which looks to the parties’ intent, equitable indemnification focuses on principles of fairness and justice and is designed to apportion loss among tortfeasors in proportion to their relative culpability[.]” (*Maryland Casualty, supra*, 35 Cal.App.4th at 864.) A condition of equitable indemnity is that there must be some basis for tort liability against the proposed indemnitor, usually involving breach of a duty owed to the underlying plaintiff. (*Stonegate Homeowners Ass’n. v. Staben* (2006) 144 Cal.App.4th 740, 751.) “The doctrine applies only among defendants who are jointly and severally liable to the plaintiff.” (*BFBG Architects Planners, Inc. v. Forcum/Mackey Construction, Inc.* (2004) 119 Cal.App.4th 848, 852.)

“Equitable indemnity ‘applies in cases in which one party pays a debt for which another is primarily liable and which in equity and good conscience should have been paid by the latter party.’” (*United Services Auto. Ass’n v. Alaska Ins. Co.* (2001) 94 Cal.App.4th 638, 644-645.) “Equitable indemnity principles govern the allocation of loss or damages among multiple tortfeasors whose liability for the underlying injury is joint and several. Such principles are designed, generally, to do equity among defendants who are legally responsible for an indivisible injury by providing a basis on which liability for damage will be borne by each joint tortfeasor ‘in direct proportion to [its] respective fault.’” (*Expressions a Rancho Niguel Assn. v. Ahmanson Development* (2001) 86 Cal.App.4th 1135, 1139-1140, citing *American Motorcycle Assn. v. Superior Court* (1978) 20 Cal.3d 578, 597-598.)

Here, the Cross Complaint alleges Barrier “was present at the subject premises at the time of the incident and was directly involved in the subject incident.” (XComplt., ¶2.) Spencer alleges it is not liable for events described in Plaintiff’s Complaint and that Barrier

is liable. (*Id.* at ¶5.) However, the Cross-Complaint fails to allege the basis for tort liability against Barrier involving a duty owed to Plaintiff. (*Stonegate Homeowners Ass’n, supra*, 144 Cal.App.4th at 751.) It also fails to allege that Barrier and Spencer are jointly or severally liable to Plaintiff. (*BFBG Architects Planners, Inc., supra*, 119 Cal.App.4th at 852.) SUSTAINED

2nd Cause of Action - Declaratory Relief

Declaratory relief is authorized pursuant to Code of Civil Procedure sections 1060-1062.5. The purpose of declaratory relief is to eliminate uncertainties and controversies that may result in future litigation. (*Marina Development Co. v. County of Los Angeles* (1984) 155 Cal.App.3d 435, 443.) An action for declaratory relief is authorized only when an actual controversy exists. (Code Civ. Proc., § 1060.) Declaratory relief has two elements a party must satisfy: “(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to [the party’s] rights or obligations.” (*Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 909.) “[T]he remedy is to be used in the interests of preventive justice, to declare rights rather than execute them.” (*Id.*) “It is the general rule that, if a complaint shows the existence of a present controversy between the parties of the nature contemplated by section 1060 of the Code of Civil Procedure, it is improper to sustain a general demurrer on a theory that assumes any declaration would necessarily be unfavorable to plaintiff.” (*Safeway Stores, Inc. v. Royal Indem. Co.* (1971) 21 Cal.App.3d 44, 47.)

However, “[w]hile section 1060’s language ‘appears to allow for an extremely broad scope of an action for declaratory relief’...In the context of a demurrer, the court will evaluate ‘whether the factual allegations of the complaint for declaratory relief reveal that an actual controversy exists between the parties...Section 1060 must be read together with section 1061.’” (*Cummins Corporation v. United States Fidelity & Guaranty Company* (2016) 246 Cal.App.4th 484, 489.) Code of Civil Procedure section 1061 provides that “[t]he court may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances.”

Here, the Cross Complaint alleges that an actual controversy exists between the parties concerning their respective rights and duties as to liability for damages suffered by the Plaintiff. (XComplt., ¶8.) Spencer alleges it desires a judicial determination of the respective rights and the percentage of fault of each party. (*Id.* at ¶9.) This is a proper subject for declaratory relief. (*Id.* at ¶¶45-46.) However, because the Cross-Complaint fails to allege the basis for tort liability against Barrier involving a duty owed to Plaintiff, as discussed above, declaratory relief is not proper at this time. SUSTAINED

3rd Cause of Action - Apportionment of Fault

Barrier states this claim fails as a matter of law because apportionment of fault is an affirmative defense or evidentiary mechanism under Proposition 51 (Civil Code § 1431.2) and is not a standalone, independent cause of action under California law.

Spencer maintains this is a cause of action, citing *American Motorcycle Ass’n v. Superior Court* (1978) 20 Cal.3d 578 and *Evangelatos v. Superior Court* (1988) 44 Cal.3d 1188,

1197-1198. However, neither of these cases address whether apportionment of fault is an independent cause of action.

Civil Code section 1431.2 states, “In any action for personal injury, property damage, or wrongful death, based upon principles of comparative fault, the liability of each defendant for non-economic damages shall be several only and shall not be joint. Each defendant shall be liable only for the amount of non-economic damages allocated to that defendant in direct proportion to that defendant’s percentage of fault, and a separate judgment shall be rendered against that defendant for that amount.” (Civ. Code, § 1431.2, subd. (a).)

The comparative fault doctrine “is a flexible, commonsense concept, under which a jury properly may consider and evaluate the relative responsibility of various parties for an injury (whether their responsibility for the injury rests on negligence, strict, liability, or other theories of responsibility), in order to arrive at an ‘equitable apportionment or allocation of loss.’” (*Knight v. Jewett* (1992) 3 Cal.4th 296, 314.) It apportions liability in direct proportion to fault in all cases. (*Li v. Yellow Cab Co.* (1975) 13 Cal.3d 804, 827.)

By its plain language, apportionment of fault is a defense, not an independent cause of action. SUSTAINED

As to the special demurrer, the Cross Complaint fails to allege the basis for tort liability against Barrier involving a duty owed to Plaintiff. It is devoid of facts where Barrier cannot reasonably determine what issues must be admitted or denied. SUSTAINED.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2602834	CAMERON VS BISHOP	ANTI-SLAPP MOTION (SPECIAL MOTION TO STRIKE) BY CHARLES BISHOP, KATHLEEN NEGRETE, JERRY LUGO, ZEKE WHEELER, TABITHA BLACK

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This matter concerns a homeowners association dispute. Plaintiff Steven Cameron is a homeowner in Bermuda Dunes Country Club, a common interest development governed by Defendant Bermuda Dunes Community Association (“Association”). (Complaint ¶11.) Defendant Kathleen Negrete is the President of the Board of Directors of the Association. (Comp. ¶3.) Defendant Jerry Lugo is the Vice President of the Board of Directors of the Association. (¶4.) Defendant Charles Bishop is the Secretary of the Board of Directors. (¶5.) Defendant Zeke Wheeler is a director on the Board of Directors. (¶6.) Defendant Tabitha Black is also a director on the Board of Directors. (¶7.)

Miguel and Maria Teresa Gonzalez own the home located next to Plaintiff’s home in the community. (Comp. ¶18.) Plaintiff alleges the Gonzalez home was renovated and while the homeowners obtained approval for certain construction plans on the property, the construction as performed materially and repeatedly deviated from the approved plans. (¶20.) Plaintiff contends the deviations included an unapproved garage door, gates, and